

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JESSICA PAGAN, Individually and as Parent and Natural
Guardian of MINOR, P.L., MINOR, Z.H., and MINOR,
P.B.,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CHRISTIAN MAS, Shield No. 967, NYPD POLICE
OFFICER SEAN O'DWYER, Shield No. 18223, NYPD
POLICE OFFICER MICHAEL BONIFACIO, Shield No.
11057, and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Prosecution

Plaintiff designates Bronx
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 18, 2023

Yours, etc.



Omar Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER CHRISTIAN MAS, Shield No. 967, NYPD 43rd Precinct; 900 Fteley Avenue, Bronx, New York 10473

NYPD POLICE OFFICER SEAN O'DWYER, Shield No. 18223, NYPD 43rd Precinct; 900 Fteley Avenue, Bronx, New York 10473

NYPD POLICE OFFICER MICHAEL BONIFACIO, Shield No. 11057, NYPD 43rd Precinct; 900 Fteley Avenue, Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

JESSICA PAGAN, Individually and as Parent and Natural
Guardian of MINOR, P.L., MINOR, Z.H., and MINOR,
P.B.,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CHRISTIAN MAS, Shield No. 967, NYPD POLICE
OFFICER SEAN O'DWYER, Shield No. 18223, NYPD
POLICE OFFICER MICHAEL BONIFACIO, Shield No.
11057, and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.

----- X

Plaintiff, JESSICA PAGAN, Individually and as Parent and Natural Guardian of MINOR,
P.L., MINOR, Z.H., and MINOR, P.B., by her attorneys, Shulman-Hill, PLLC, as and for her
Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 21, 2023, at approximately 11:00 a.m., Plaintiff, while lawfully inside her apartment located at 2006 Ellis Avenue, Apartment 1A, County of Bronx, New York, was subject to an unlawful arrest and detention by the defendant officers. Plaintiff was thereafter arraigned in Bronx County Criminal Court and charged with crimes she did not commit. In addition, Plaintiff was subjected to grossly excessive force, and approximately five (5) days of unlawful confinement between the 43rd Precinct, Bronx County Central Booking, and Rikers Island Correctional Facility. As a result of the false charges made against her and the actions of the defendant officers, Plaintiff lost custody of her children, Minor P.L., Minor Z.H., and Minor P.B., for approximately six (6) months. All charges made against Plaintiff, Jessica Pagan, were dismissed and sealed in their entirety on or about July 6, 2023. Plaintiff was deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the

malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Jessica Pagan, is a resident of the state of New York, and is the mother and natural guardian of Minor P.L., Minor Z.H., and Minor P.B.

3. NYPD Police Officer Christian Mas, Shield No. 967, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD Police Officer Christian Mas, Shield No. 967, is being sued in his individual and official capacity.

5. Upon information and belief, NYPD Police Officer Christian Mas, Shield No. 967, was at all times relevant herein assigned to the NYPD 43rd Precinct.

6. NYPD Police Officer Sean O'Dwyer, Shield No. 18223, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. NYPD Police Officer Sean O'Dwyer, Shield No. 18223, is being sued in his individual and official capacity.

8. Upon information and belief, NYPD Police Officer Sean O'Dwyer, Shield No. 18223, was at all times relevant herein assigned to the NYPD 43rd Precinct.

9. New York City Police Officer Michael Bonifacio, Shield No. 11057, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. New York City Police Officer Michael Bonifacio, Shield No. 11057, is being sued in his individual and official capacity.

11. Upon information and belief, New York City Police Officer Michael Bonifacio, Shield No. 11057, was at all times relevant herein assigned to the NYPD 43rd Precinct.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and

engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50 Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on August 10, 2023.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On January 21, 2023, at approximately 11:00 a.m., Plaintiff was lawfully present inside her home, located at 2006 Ellis Avenue, Apartment 1A, County of Bronx, New York, when the defendant police officers unlawfully arrested her without probable cause or legal justification.

22. Plaintiff had been previously home alone when her child's father came over, started an argument, and physically assaulted Ms. Pagan, including slamming her against a door and strangling her until she lost consciousness.

23. Upon regaining consciousness, Plaintiff called 911 for help. She also called her mother, who had taken the minor children earlier that morning.

24. Plaintiff's mother quickly arrived with her two youngest children, Minor Z.H. and Minor P.B.

25. When defendant officers arrived at the apartment, they began to hostilely question Plaintiff, seemingly indifferent to the fact that she had just suffered a brutal physical assault.

26. Plaintiff began to suffer from what appeared to be an anxiety attack from the stress of the situation.

27. Instead of rendering legitimate medical care, or at the very least some basic degree of compassion or decency, the defendant officers became unduly physically aggressive, grabbing Plaintiff about the arms and legs, and injecting her with an unknown substance.

28. Plaintiff's mother and children were present and observed the defendant officers' brutal assault, all crying for the officers to stop.

29. The defendant officers began to arrest Plaintiff, forcing her face down on a bed, subjecting her to unlawful pat-down search, and tightly restraining her with metal handcuffs causing pain and discomfort.

30. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse her of committing a crime or violating the law in any way.

31. At no point did the defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

32. Plaintiff did not resist arrest.

33. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subjected to unlawful pat-down search by the defendant officers without legal justification or probable cause.

34. Plaintiff lost consciousness as a result of the heavy sedatives that were forcefully injected into her arm by defendant officers, and she awoke a short time thereafter handcuffed to a hospital bed at St. Barnabas Hospital.

35. Thereafter, Plaintiff was transported to the NYPD 43rd Precinct where she was fingerprinted, photographed, and placed in a holding cell.

36. After some time at the 43rd Precinct, Plaintiff was transported to Bronx County Central Booking where she was again fingerprinted, photographed, and placed in a holding cell.

37. While Plaintiff was in custody, the defendant police officers provided the Bronx County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff committed a crime.

38. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was engaged in Assault on an Officer, Resisting Arrest, and other related charges.

39. Worse still, the defendant officers falsely reported that Plaintiff's children, Minor P.L., Minor Z.H., and Minor P.B. were living in an unstable environment, and that Plaintiff was suicidal.

40. On or about January 23, 2023, Plaintiff was arraigned in criminal court, charged with crimes she did not commit, her bail was set and she was remanded to Rikers Island Correctional Facility.

41. After approximately five (5) days in unlawful custody, Plaintiff was released from Rikers Island Correctional Facility on her own recognizance.

42. Upon her release from custody, Plaintiff discovered that Child Services had opened an investigation on her and that her mother had been given temporary custody of her children, Minor P.L., Minor Z.H., and Minor P.B.

43. Plaintiff would make several appearances in both Criminal Court and Family Court over the next six (6) months.

44. Plaintiff was forced to attend court-ordered therapy as a result of defendant officers' claims that she was suicidal.

45. On or around July 6, 2023, all criminal charges against Ms. Pagan were dismissed and sealed in their entirety.

46. Ms. Pagan's Family Court charges were resolved on or around July 20, 2023, and her children, Minor P.L., Minor Z.H., and Minor P.B., were returned to her custody.

47. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

48. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain mental and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

50. Defendants owed a duty of care to Plaintiff.

51. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing her.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

53. All of the foregoing occurred without any fault or provocation by Plaintiff.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

57. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

59. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Unlawful Seizure and Deprivation of Liberty

63. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

64. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Fourteenth Amendment Rights:

The Right to Family Integrity

66. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The individually named defendant officers, while acting in concert and within the scope of their authority and employment, caused Plaintiff to be denied her fundamental right to the preservation of family integrity. See Stanley v. Illinois, 405 U.S. 645 (1972); see also Smith v. Organization of Foster Families for Equality and Reform, 431 U.S. 816 (1977).

68. In creating false narratives and or withholding crucial evidence and or information, the individually named defendant officers caused Plaintiff to be separated without the benefit of just legal proceedings, infringing on their right to family integrity by, upon information and belief, forcing the minor children to be separated from their parent and natural guardian, Jessica Pagan.

FIFTH CAUSE OF ACTION

False Arrest/False Imprisonment

69. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional, and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants by, amongst other things, injecting Plaintiff with sedatives against their will and tightly handcuffing her, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

78. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

79. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

80. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

81. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

86. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

89. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene

on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

90. Defendants failed to intervene to prevent the unlawful conduct described herein.

91. As a result of the foregoing, Plaintiff suffered permanent injury, her liberty was restricted for an extended period of time, she were put in fear for her safety, was humiliated and subject to other physical constraints.

92. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

96. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

97. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

98. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

99. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

100. In withholding/creating false evidence against Ms. Pagan, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional rights to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

101. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: physical, economic, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION

42 U.S.C. 1983 and State Law Malicious Prosecution

105. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

106. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

107. Defendants commenced and continued a criminal proceeding against Ms. Pagan.

108. There was actual malice and an absence of probable cause for the criminal proceeding against Ms. Pagan as for each of the charges for which she was prosecuted.

109. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TWELFTH CAUSE OF ACTION

Assault

110. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

111. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, that such acts caused apprehension of such contact in the plaintiff.

112. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Battery

116. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

117. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner violently grabbed Plaintiff, dragged her to the ground, injected her against her will, and brutally effected an arrest of Plaintiff without their consent and with the intention of causing harmful and/offensive bodily contact to Plaintiff, and caused such batteries.

118. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

122. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

123. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

124. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

125. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining her and further causing her detention for approximately five (5) days in total; Plaintiff's children were also separated from their mother for approximately six (6) months in total.

126. By reason of the acts and omissions by Defendants described above, Plaintiff has endured mental and emotional injuries and were otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION
Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights

127. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

128. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

129. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

130. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

131. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured mental and emotional injuries and were otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

126. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining her and further causing her detention for approximately five (5) days in total. The minor children were also separated from their mother for approximately six (6) months in total.

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured mental and emotional injuries and were otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

133. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of their rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiff has endured mental and emotional injuries and were otherwise damaged and injured.

EIGHTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

133. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

134. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

135. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, mental, economic, and emotional injuries, as well as a deprivation of liberty.

136. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

137. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

141. Plaintiff hereby demand trial by jury of all issues properly triable thereby.

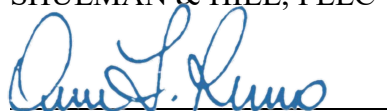
PRAYER FOR RELIEF

WHEREFORE, Plaintiff, JESSICA PAGAN, Individually and as Parent and Natural Guardian of MINOR, P.L., MINOR, Z.H., AND MINOR, P.B., demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
December 18, 2023

SHULMAN & HILL, PLLC

By:



Omar T. Russo, Esq.

Attorneys for Plaintiff

1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER CHRISTIAN MAS, Shield No. 967, NYPD 43rd Precinct; 900 Fteley Avenue, Bronx, New York 10473

NYPD POLICE OFFICER SEAN O'DWYER, Shield No. 18223, NYPD 43rd Precinct,
900 Fteley Avenue, Bronx, New York 10473

NYPD POLICE OFFICER MICHAEL BONIFACIO, Shield No. 11057, NYPD 43rd
Precinct; 900 Fteley Avenue, Bronx, New York 10473

ATTORNEY'S VERIFICATION

OMAR T. RUSSO, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 18, 2023


OMAR T. RUSSO, ESQ.